

The Sugar Control Order, 1966

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Union of India - Act

The Sugar Control Order, 1966

UNION OF INDIA

India

The Sugar Control Order, 1966

Rule THE-SUGAR-CONTROL-ORDER-1966 of 1966

Published on 10 June 1966

Commenced on 10 June 1966

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[Note: The original publication document is not available and this content could not be verified.]

The Sugar Control Order, 1966

Published vide Notification Gazette of India, G.S.R. 912 Extraordinary, dated 10-6-1966, Part 2, Section 310, page 429

G.S.R., 912, dated 10-6-1966. - In exercise of the powers conferred by Section 3 of the Essential Commodities Act, 1955 (

10 of 1955

), the Central Government hereby makes the following Order, namely:

1.

Short title, extent and commencement.

(1)

This Order may be called the Sugar (Control) Order, 1966.

(2)

It extends to the whole of India [* * *]

[Omitted by GSR 621, dated 8-4-1970.]

.

(3)

[It shall come into force at once.]

[Substituted by GSR 1747, dated 16-11-1967.]

2.

[Definitions.

[Inserted by GSR 387(E), dated 22-8-1972.]

- In this Order, unless the context otherwise requires,-]

(a)

["Bulk consumer" means halwai, sweetmeat seller or a confectioner ;]

[Inserted by GSR 387(E), dated 22-8-1972.]

[(aa)]

[Inserted by GSR 1915, dated 6-8-1969.]

"Indian Sugar Standard Grades" means the grades represented by the standard sealed samples of sugar in bottles issued by the Director, National Sugar Institute, Kanpur, informing to the standards prescribed by the Indian Standards Institution;]

(b)

["producer" means a person carrying on the business of manufacturing sugar;]

[Relettered by GSR 1915, dated 6-8-1969.]

(c)

["recognised dealer" means a person carrying on the business of purchasing, selling or distributing sugar, and licenced under the Order relating to licencing of sugar dealers for the time being in force in a State or Union Territory.]

[Relettered by GSR 1915, dated 6-8-1969.]

3.

Power to regulate production of sugar.

- The Central Government may, by order published in the Official Gazette, direct that no sugar shall be manufactured from sugarcane except under and in accordance with the conditions specified in a licence issued in this behalf, whether on payment of a fee or otherwise.

[4. Power to restrict sale, etc. of sugar by producers. - The Central Government may direct that no producer shall sell or agree to sell or otherwise dispose of, or deliver any kind of sugar or remove any kind of sugar from the banded godowns of the factory in which it is produced, except under and in accordance with a direction issued in writing by the Central Government :]

[Substituted by GSR 1747, dated 16-11-1967.]

[Provided that this clause shall not affect the pledging of such sugar by any producer in favour of any Scheduled Bank as defined in clause (e) of Section 2 of the Reserve Bank of India Act, 1934 (

2 of 1934

) or any of corresponding new bank constituted under Section 3 of the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970 (

5 of 1970

) and no such bank shall sell the sugar pledged to it except under and in accordance with a direction issued in writing by the Central Government.]

[Inserted by GSR 25(E), dated 31-1-1974.]

5.

Power to issue directions to producers and dealers.

- The Central Government [* * *]

[Omitted by GSR 1747, dated 16-11-1967.]

may, from time to time, by general or special order, issue to any producer or recognised dealer, or any class of producers or recognised dealers, such directions regarding the production, maintenance of stocks, storage, sale, grading packing, marking, weightment, disposal, delivery and distribution of [any kind of sugar]

[Substituted by GSR 1747, dated 16-11-1967.]

as it [* * *]

[Omitted by ibid.]

may deem fit.

[5A. Sugar attached by Government officers etc. not to be sold without direction. - Where any stock of sugar with any producer or recognised dealer is attached or seized,-

(i)

by any officer of the Central or a State Government in accordance with the provisions of any enactment for the time being in force, or

(ii)

in pursuance of any proceedings in civil court.

the sugar so attached or seized shall not be ordered to be sold unless the officer or Court is satisfied that directions have been issued by the Central Government under Clause 5 regarding the sale of such sugar.]

[Inserted by GSR 1747, dated 16-11-1967.]

6.

Power to regulate movement of sugar.

- The Central Government [* * *]

[Omitted by GSR 1947, dated 16-11-1967.]

may, by general or special order, direct that no person shall transport or offer or accept for transport whether by road, rail or water all or [any kind of sugar]

[Substituted by ibid.]

, except under-

(a)

a general or special permit issued in this behalf; and

(b)

a military credit not :

Provided that nothing in this clause shall apply to the transport of sugar not exceeding one kilogram as part of the personal luggage of a bona fide traveller.

[7. Power to regulate quality of sugar. - (a) the Central Government may prescribe the quality of sugar in terms of Indian Sugar Standard Grades to which all or any kind of sugar should conform at the time of delivery in pursuance of the direction issued to a producer under clause (f) of sub-section (2) of Section 5 of the Essential Commodities Act, 1955, or Clause 5 of this Order.

(b)

When the Central Government is of the opinion that any stock of sugar with any producer is below any of the Indian Sugar Standard Grades of sugar, it may direct the producer to reprocess the said stock with a view to conform to one or more of the Indian Sugar Standard Grades of sugar [or to sell it only to bulk consumers for use in the manufacture of their products.]

8.

[* * * *]

[Omitted by GSR 1947 dated 16-11-1967.]

[9. Utilisation of sugar taken delivery of in pursuance of an Order under section 3(2)(f) of Act. - Where any person, class of persons or organisation taken delivery of sugar from any producer in pursuance of a direction made under clause (f) of sub-section (2) of Section 3 of the Act, such persons or organisations, as the case may be shall-

(i)

utilise the sugar so taken delivery of for the purpose for which such delivery was taken and for no other purpose and

(ii)

submit to the Chief Director within fifteen days of the utilisation of the sugar so taken delivery of a certificate to the effect that the sugar has been utilised for the purpose for which it was taken delivery of.]

10.

Power to call for Information, etc.

- The Central Government [* * * *]

[Omitted by GSR 1747, dated 16-11-1967.]

or any person authorised in this behalf by the Central Government may, with a view to securing compliance with this Order, or to satisfy itself [* * *]

[Omitted by GSR 1747, dated 16-11-1967.]

that any order or direction issued under this Order is complied with,-

(a)

require any producer or recognised dealer to furnish within such period or at such intervals as may be specified, such information, returns or reports and in such forms as may be required; and

(b)

prescribe the manner in which accounts of any sales, purchases or other transactions of sugar should be kept.

11.

Power of inspection, entry, search, sampling, seizure, etc.

- [1]

[Renumbered by GSR 1747, dated 16-11-1967.]

[* * *]

[Renumbered by GSR 1747, dated 16-11-1967.]

. Any officer authorised by the Central Government in this behalf, may-

(a)

direct any producer or recognised dealer to maintain such records as he may specify;

(b)

direct any producer or recognised dealer to furnish such information as he may require;

(c)

inspect or authorise any person to inspect any books or any documents or stocks of sugar belonging to or under the control of a producer or a recognised dealer;

(d)

enter and search or authorise any person to enter and search-

(i)

any place where sugar is manufactured including the machinery installed therein;

(ii)

any place in which there is reason to believe that sugar is stored in contravention of this Order.

(e)

draw or authorise any person to draw, in accordance with the procedure laid down in Clause 12, samples for examination-

(i)

from any stock of sugar belonging to, or under the control of a producer or recognised dealer;

(ii)

from any consignment of sugar in the course of its delivery or despatch by a producer;

(f)

stop and search or authorise any person to stop and search-

(i)

any person transporting sugar; or

(ii)

any vehicle, vessel or other conveyance used or capable of being used for the transport of sugar, in contravention of this Order;

(g)

seize or authorise the seizure of any sugar in respect of which he has reason to believe that a contravention of this, Order has been, is being or is about to be, committed, along with the packages, coverings or receptacles in which sugar is found or the animals, vehicles., vessels, or other conveyance used in carrying such sugar and thereafter take or authorise the taking of all measures necessary for securing the production of such packages, coverings, receptacles, animals, vehicles, vessels or other conveyances in a Court and for their safe custody pending such production.

(2)

[The provision of Sections 102 and 103 of the Code of Criminal Procedure, 1898 (5 of 1898) relating to search and seizure shall, so far as may be, apply to searches and seizures under this clause.]

[Inserted by GSR 1747, dated 16-11-1967.]

12.

Procedure for drawing samples.

- [(1)]

[Renumbered by GSR 1266, dated 7-9-1971.]

Subject to the provisions of sub-clause (e) of Clause II, the person drawing the samples shall, follow the procedure as hereunder:

(a)

[The samples shall be drawn in the presence of a producer or recognised dealer, as the case may be, or a representative of the producer or recognised dealer;]

[Relettered by GSR 100, dated 27-12-1971.]

(b)

[A separate samples shall be drawn from each lot consisting of sugar bags declared by the producer or recognised dealer to have the same grade or sugar.]

[Relettered by GSR 100, dated 27-12-1971.]

(c)

[]

[Relettered by GSR 100, dated 27-12-1971.]

[The sample drawn shall be divided into three portions and each portion shall be put in a separate container which shall be sealed both by the person drawing the sample and the producer or recognised dealer, as the case may be, or his representative with their respective scales and shall also be signed by both;]

[Substituted by GSR 1193, dated 1-8-1966.]

(d)

[Two such portions shall be forwarded to the Directorate of Sugar, and Vanaspati and the third shall be left with the producer or recognised dealer, as the case may be, or his representative.]

[Relettered by GSR 100, dated 27-12-1971.]

(2)

[Out of the two sealed portions of the sugar sample received in the Directorate of Sugar and Vanaspati under sub-clause (1), one sealed portion shall be examined by the Grading Committee to determine its quality with reference to the Indian Sugar Standard grades in force for the year in which the sugar was manufactured. If the grade of the said portion of the sugar sample is found by the Grading Committee to be lower than the grade declared by the producer or recognised dealer, as the case may be, the Directorate of Sugar and Vanspati shall forward the other sealed portion of the sugar sample, as received to the National Sugar Institute, Kanpur for determining its grade and the grade determined by the said Institute shall not be called in question.]

[Inserted by GSR 1266, dated 7-9-1971.]

(3)

[For the purposes of sub-clause (2), 'Grading Committee' means the Committee consisting of five Group 'A' Officers of the Directorate of Sugar, appointed by the Chief Director, to grade samples of sugar. A majority of the members of the Committee to be appointed shall be required to constitute a quorum for meetings of the Committee.]

[Substituted by GSR 596 (E), dated 30-8-1977.]

13.

[Certificate regarding samples drawn etc.

[Substituted by GSR 1193, dated 1-8-1966.]

- A certificate to the effect that each of the samples drawn is representative of the lot from which it was drawn shall be furnished along with the particulars of the samples in the form set out in the Schedule hereto annexed, to the person drawing such samples by the producer or recognised dealer, as the case may be, or his representative and such certificate shall be countersigned by the person drawing the samples and in endorsement to the effect that the procedure prescribed under Clause 12 has been followed shall be made thereunder by the person drawing the samples and such endorsement shall be countersigned by the producer or recognised dealer, as the case may be, or his

representative.]

[Substituted by GSR 1747, dated 16-11-1967.]

14.

Compliance of orders.

- Every producer or recognised dealer or other person to whom any order or direction is issued under any powers conferred by or under this Order, shall comply with such Order or direction.

15.

Delegation of powers.

- The Central Government may, by notification in the official Gazette, direct that all or any powers conferred upon it by this Order shall, subject to such restriction, exceptions and conditions, if any, as may be specified in the direction, be exercisable also by-

(a)

any officer or authority of the Central Government

(b)

a State Government or any other or authority of a State Government.

16.

[* * *]

[Omitted by GSR 1747, dated 16-11-1967.]

17.

Repeal and Savings.

- The Sugar (Control) Order, and any order made by the Central Government or any authority regulating or prohibiting the production, supply and distribution of sugar and trade or commerce therein are hereby repealed except as respects things done or omitted to be done under any such order before the commencement of this Order.

(2)

Notwithstanding such repeal, an order made by any authority, which is in force immediately before the commencement of this Order, which is consistent with this Order, shall continue in force and all appointments made, prices fixed, licences and permits granted directions issued under any such order and in force immediately before such commencement shall likewise continue in force and be deemed to be made, fixed, granted or issued in pursuance of this Order.

[The Schedule]

[Inserted by GSR 1193, dated 1-8-1966.]

[See clause 13]

1. Certificate:

This is to certify that Shri.....(here enter designation). Directorate of sugar and Vanaspati, Ministry of food, Agriculture, Community Development and Co-operator, Government of India has drawn in my presence, a sample in triplicate from the Consignment of sugar under despatch as per particulars given below. The sample is truly representative of the lot from which it is drawn and each of the three portions has properly packed and sealed with my seal and the official seal of the Inspecting Officer and has also been signed by me and the drawing officer. Of the three portions of the sample, one has been retained by us.

Countersignature of the Officer drawing the sample, Signature of the producer/ recognised dealer/ accredited representative.

Designation

Designation

(2)

The sample has been drawn in accordance with the procedure prescribed under clause 12 of the sugar (Control) order , 1966. Countersignature of the producer/ recognised/ accredited representative.

Signature of the drawing the sample Designation Date:

Designation Date:

Forwarded to the Directorate of sugar and Vanaspati, Ministry of Food, Agriculture, Community Development and Co-operation, New Delhi along with the two samples of sugar referred to above out of the triplicate samples from consignment under despatch.

Signature of the Officer drawing sample.

II. Particulars of Sugar Sample Drawn from Consignment under Despatch from M/s.....

Drawing Officers, sample number

Date of drawing sample

Wagon/Truck No. In which sugar loaded and from which sample drawn

Number of bags loaded

Factory Godown and lot No. from which sugar loaded

Relevant Excise Gate pass No, and date

Name and address of the consignee to whom sugar booked

Destination of station

Season of production of sugar

Grade marked/ declared by the factory

Government Release Order No. and date against which sugar despatched.

Remarks

III. Impression of the Seals used for Sealing the Samples :

(a) Producer/ Recognized dealer or his representative

(b) Official seal of the officer, taking sample

To

The Chief Director, Directorate of Sugar and Vanaspathi, Ministry of Food, Agriculture, Community Development and Co-operator, (Department of Food), Jamnagar House, New Delhi-11.

Note-1. All the bags in a single consignment declared to contain sugar of one grade shall constitute a lot. If a Consignment is declared to consist of different grades. The bags of each grade shall constitute separate lot.

2. One form should be used to cover the sugar bags loaded in one wagon, truck, etc.]

[Minimum of Food, Agriculture, Community Development and Co-operator, No. 1-9/66-S. Py.]

Ministry of Food, order No. G.S.R. 442(E), dated May 9, 1994, published in the Gazette of India, Extra, Part II, Section 3(i), dated 9th May, 1994.

In exercise of the powers conferred by Clause 5 of the Sugar (Control) order, 1996 and in supersession of the Order of the Government of India in the Ministry of food No. G.S.R. 842(E)-Ess. Com./Sugar dated 30-10-1992, the Central Government hereby directs that no producer shall:

(i)

Subject to the availability of sugar covered by an Order permitting such sale, refuse to sell sugar to a recognised dealer or

(ii)

sell and despatch less than monthly quota of sugar released to him, for sale by the monthly order. Within a period specified therein; or

(iii)

[sell and despatch less than 47.5 per cent of their monthly quota of sugar released to him for sale in each of the following fortnight periods of a months, namely;

[Substituted by Notification Order No. G.S.R. 274(E)/ESS Com/Sugar dated 20th March, 1995.]

(a)

1st to the 15th.

(b)

16th to the end of the month.]

(iv)

despatch more than 5000 quintals of sugar in any of the weekly periods mentioned in item (iii) above, to any recognised dealer and that the particular of despatches made during any of the said weekly periods shall be reported by the producer within seven days from the date of expiry of the relevant weekly periods, in the Annexure annexed to this Order, to such authorities as may be specified in this behalf by the Government of the State to which sugar is despatched as well as the Government of the State in which the producer's sugar factory is located:

Provided that nothing in this Order shall apply to the sale or despatch of sugar by a producer:

(a)

on Government account: or

(b)

to the nominee of the State Government or an officer authorised by it for distribution through fair price shops; or

(c)

to the Food Corporation of India.

2. This order shall come into force with effect from 15-5-1994.

Annexure

[See Item (iv)]

Weekly Return relating to despatches of sugar released for free sale under Clause 5 of the Sugar (Control) order, 1966

Weekly periods.....

Name of Sugar Factory.....

Particulars of despatches

Sr. No.

Release order No. and date

Date of despatch

Name and address of the buyer

Particulars of buyers sugar dealers licence

Quantity Despatched (Ots)

I.S.S. (Grade)

Rate per Quintal

Name of destination (fly. Station in case
despatches by real)

Remarks

Ex. factory price

Central Excise duty

1

2

3

4

5

6

7

8

9

10

11

Notifications

Order No. G.S.R. 9(E)/ESS. Com./Sugar, dated January 7, 1994, published in the Gazette of India, Extra, Part II Sections 3 (i), dated 7th January, 1994.

In exercise of the powers conferred by Clause 5 of the sugar (Control) Order, 1966 and in supersession of the orders of the Government of India in the Ministry of Food and Civil Supplies (Department of Food) No. G.S.R. 220 (E)/ESS. Com./ Sugar dated the 18th April, 1991 and in the Ministry of Food No. G.S.R. 703 (E)/ESS. Com./ Sugar dated the 27th November, 1991 and No. G.S.R. 501 (E)/ESS. Com./ Sugar dated 8th July 1993, the Central Government hereby directs that no recognised dealer shall hold any stock of Vacuum pan sugar or khandsari (open pan sugar) for a period exceeding seven days from the date of receipt by him of such stock and shall not keep in stock at any time-

(1)

Vacuum pan sugar, in the places mentioned below. In exercise of the quantities mentioned against each.-

(i)

In Calcutta and extended area-

(a)

recognised dealers who import sugar from outside west Bengal - 3500 quintals;

(b)

other recognised dealers - 250 quintals;

(ii)

In other places-

(a)

In cities and town with a population of one lakh or more - 250 quintals;

(b)

In order towns and areas with a population of less than one lakh - 125 quintals.

(2)

Khandsari (open pan sugar) in excess of 250 quintals;

Provided that nothing in this order shall apply to the holding or keeping of stock of sugar or khandsari -

(i)

on Government accounts; or

(ii)

by the recognised dealers nominated by a State Government or an officer authorised by it to hold stock for distribution through fair price shops; or

(iii)

by the food Corporation of India;

Provided Further that the State Government or Union Territory Administrations are authorised to fix a lower stock limit in the case of recognised dealers dealing in retail trade

Explanation. - For the purpose of this order-

1. Calcutta and extended area means the area specified in the Schedule to the notification of the Government of West Bengal No. 7752 F.S./14R/9261, dated the 16th December, 1994.

2. For counting the period of holding of the stock the date on which any stock is received by the recognised dealer shall be included.

3. This order shall come into force at once.

Notification No. G.S.R. (E)/Ess Com./Sugar, dated February 18, 1984, published in the Gazette of India, Extra, Part II, Section 3(i), dated 18-2-1984.

In exercise of the powers conferred by clause 5 of the Sugar (Control) Order, 1966, the Central Government hereby directs that every producer of khandsari (open pan sugar) shall declare to the specific authority -

1. (i) his opening stocks of khandsari as on the 1st and 16th of every month from March to September, 1984; and

(ii)

the quantity of khandsari produced in each fortnight from the 1st March, 1984 to the 30th September, 1984.

Explanation. - For the purpose of his Order, "specified authority means the Collector of the District in which the producer's khandsari unit as located or such authority as the State Government may specify in this behalf.]

2. This order shall come into force at once.

Notification No. G.S.R. 377(E), Dated April 11, 1994, Published in the Gazette of India, Extra, Part II, Section 3(1), dated 11th April, 1994.

In exercise of the powers conferred by clause of 5 of the Sugar (Control) Order. 1966 and in supersession of the Government of India in the Ministry of Food, Order No. G.S.R. 9(E). dated the 7th January, 1994, the Central Government hereby directs that no recognised dealer shall hold any stock of vacuum pan sugar or Khandsari (open pan sugar) for a period exceeding seven days from the date of receipt by him of such stock and shall not keep in stock at any time.

1.

(1)

Vacuum pan Sugar in the places mentioned below. In exercise of the quantities mentioned against each.

(i)

In Calcutta and extended area-

(a)
recognised dealers who import sugar from outside West Bengal - 3500 quintals;

(b)
other recognised dealers - 250 quintals;

(ii)
In other places-

(a)
In cities and town and areas with a population of one lakh or more - 250 quintals.

(b)
In other towns and areas with a population of less than one lakh - 125 quintals.

(2)
Khandsari (open pan sugar) in excess of 250 quintals:

Provided that nothing in this Notification shall apply to the holding or keeping of stock or stock of sugar or khandsari.

(i)
on Government account; or

(ii)
by the recognised dealers nominated by a State Government or an Officer authorised by it to hold stock for distribution through fair price shops; or

(iii)
by the Food Corporation of India;

Provided further that the aforesaid stock holding limit/turn over periods of stocks will not apply to sugar imposed under open General Licence.

Further In exercise of the powers conferred by clause 15 of the said order. the Central Government direct that the State Government or Union Territory Administration are authorised to fix a lower stock limit in the case of recognised dealers dealing in retail trade.

Explanation. - For the purpose of this Notification-

(i)
"Calcutta and extended area" means the area specified in the schedule to the Notification of the Government of West Bengal No. 7752 FS/F-5/14 R-92/61 dated 16th December, 1964; and

(ii)
for counting the period of holding of the stock, the date on which any stock is received by the recognised dealer shall be included.

2. This Notification shall come into force at once.

Notifications

Notification No. G.S.R. 510(E), Ministry of Food and Civil Supplies (Department of Food), dated May 5, 1989, published in the Gazette of India, Extra, Part II, Section 3(1), dated 5th May, 1989.

In exercise of the powers conferred by Clause 5 of the Sugar (Control) Order, 1966, the Central Government hereby directs that every producer of Khandsari (open pan sugar) shall -

1.

(1)
declare his opening stock of Khandsari as on the 7th May, 1989 and also the quantity produced in each month thereafter till the 30th September, 1989, to the specified authority:

(2)
sell and despatch the stocks as on 7th May, 1989 declared after the 7th May, 1989 and up to 30th September, 1989, latest by the 31st October, 1989 in the following manner, namely:

(i)
not less than 25 per cent of the opening stocks as on the 7th May, 1989, during the month of May, 1989;

(ii)
not less than 30 per cent of the opening stocks as on the 1st June, 1989, during the month of June, 1989;

(iii)
not less than 30 per cent of the opening stocks as on the 1st July, 1989, during the month of July, 1982;

(iv)

not less than 30 per cent of the opening stock as on 1st August, 1989, during the month of August, 1989;

(v)

not less than 30 per cent of the opening stocks as on 1st September, 1989, during the month of September, 1989;

(3)

furnish particulars of stocks, production, sales and despatches of Khandsari for each month latest by the 7th day of the following month to the specified authority:

Provided that the opening stocks of Khandsari as on the 7th May, 1989 shall be declared on or before the 12th May, 1989.

Explanation. - For the purpose of this Order, "specified authority" means the Collector of the District in which the producer's Khandsari unit is located or such other authority as the State Government may specify in this behalf.

2. This Order shall come into force at once.

G.S.R. 456(E)/Ess. Com./Sugar dated 20-4-1990. - In exercise of the powers conferred by clause 5 of the Sugar (Control) Order, 1966, the Central Government hereby directs that every producer of Khandsari (open pan sugar) shall -

(1)

declare his opening stocks of Khandsari as on the 30th April, 1990 and also the quantity produced in each month thereafter till the 30th September, 1990 to the specified authority;

(2)

sell and despatch not less than 30 per cent of the stocks, as on 30th April, 1990 declared in accordance with the provisions, of Paragraph (1), during each of the months of May and June, 1990;

(3)

Furnish particulars of stocks, production, sales and despatches of Khandsari for each month latest by the 7th day of the following month to the specified authority:

Provided that the opening stocks of Khandsari as on the 30th April, 1990 shall be declared on or before the 7th May, 1990.

Explanation. - For the purpose of this order, "Specified authority" means the Collector of the District in which the producer's Khandsari unit is located or such other authority as the State Government may specify, in this behalf.

2. This Order shall come into force at once.

G.S.R. 679(E)/Ess. Com./Sugar, dated the 31st July, 1990. - [In exercise of the powers conferred by clause 5 of the Sugar (Control) Order, 1966 and in supersession of the Order of the Government of India in the Ministry of Food and Civil Supplies (Department of Food) No. G.S.R. 455(E)/Ess. Com. Sugar dated the 20th April, 1990]

[Published in Gazette of India, Part II, Section (1), dated 31-7-1990.]

, the Central Government hereby directs that no producer shall -

(i)

Subject to the availability of sugar covered by an Order permitting such sale, refuse to sell sugar to a recognised dealer: or

(ii)

sell and despatch less than monthly quota of sugar released to him for sale by the monthly order, within a period specified therein; or

(iii)

sell and despatch less than twenty per cent of the monthly quota of sugar released to him for sale, in each of the following weekly periods of a month, namely:

(a)

1st to the 7th.

(b)

8th to the 15th.

(c)

16th to the 22nd.

(d)

23rd to the end of the month:

Provided that the despatch of minimum 20 per cent of the monthly quota for the period 1st to 7th month may be

completed upto the 10th of the month, if the total minimum despatch for the period ending with the 15th of the month is not less than 40 per cent of the monthly quota;

(iv)

despatch more than 5000 quintal of the sugar in any of the weekly periods mentioned in item (iii) above, to any recognised dealer and that the particulars of despatches made during any of the said weekly periods shall be reported by the producer within seven days from the date of expiry of the relevant weekly periods, in the Annexure annexed to this Order to such authorities as may be specified in this behalf by the Government of the State to which sugar is despatched as well as the Government of the State in which the producer's sugar factory is located;

Provided that nothing in this Order shall apply to the sale or Despatch of sugar by a producer:

(a)

on Government account;

(b)

to the nominee of the State Government or an officer authorised by it for distribution through fair price shop; or

(c)

to the Food Corporation of India

2. This Order shall come into force on the 1st August, 1990.

Annexure

[See item (iv)]

Weekly Return relating to despatches of sugar released for free sale under clause 5 of the Sugar (Control) Order, 1966.

Weekly period.....

Name of the sugar factory.....

Particular of despatches

Sl. No.

Release Order No. & date

Date of despatch

Name & address of the buyer

Particulars of buyers's sugar dealers license

buyer

Quantity Despatched (Qts.)

1

2

3

4

5

6

I.S.S Grade

Rate per quintal (in

Rs.)_____

Name of destination (Rly. Station in case of
despatches by rail)

Remarks

Ex factory price

Central Excise duty

7

8

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Notifications

Notification No. G.S.R. 409(E)/Ess.Com./Sugar, dated July 14, 1980, published in the Gazette of India, Extra, Part II, Section 3(i) dated 14th July, 1980, pages 725-26.

In exercise of the powers conferred by clause 5 of the Sugar (Control) Order, 1966 the Central Government hereby directs, that every producer of Khandsari (open pan sugar) shall -

(1)

declare his opening stocks of Khandsari as on the 15th July, 1980 and also the quantity produced in each month thereafter till the 30th September, 1980 to the specified authority;

(2)

sell and despatch the stocks as on the 15th July 1980 declared in accordance with the provisions of sub-clause (1) together with those produced after the 15th July, 1980 and up to 30th September, 1980 latest by the 31st October, 1980 in the following manner, namely:-

(i)

not less than 20 per cent of the opening stocks as on the 15th July, 1980 during the period from the 15th to 31st July, 1980.

(ii)

not less than 20 per cent of the opening stocks as on the 1st August, 1980

(iii)

not less than 20 per cent of opening stocks as on the 1st September, 1980 during the months of September, 1980: and

(iv)

not less than 20 per cent of the opening stocks as on the 1st October, 1980 during the month of October, 1980;

(3)

Furnish particulars of stocks, production sales and despatches of Khandsari for each month latest by the 7th day of the following month to the specified authority:

Provided that the opening stocks of Khansadari as on the 15th July, 1980 shall be declared on or before the 18th July, 1980.

Explanation. - For the purpose of this Order, " specified authority" means the Collector of the District in which the producer's Khansadari unit is located or such other authority as the State Government may specify in this behalf.

2. This Order shall come into force at once.

Ministry of Food and Civil Supplies (Department of Food), Notification No. G.S.R. 392/(E)/Ess./Com/Sugar, dated May 22, 1984 published in the Gazette of India, Extra, Part II Section 3(i), dated 22nd May, 1984, page 203.

[No. 1(1)/84-SPY-D.II] [C]

In exercise of the powers conferred by clause 5 of the Sugar (Control) Order, 1966 and in supersession of the Order of the Government of India in the Ministry of Food and Civil Supplies (Department of Food) No. G.S.R. 76(E)/Ess.Com/Sugar dated the 18th February, 1984, the Central Government hereby directs that every producer of Khandsari (open pan sugar) shall -

(1)

declare his opening stocks of Khandsari as on the 31st May, 1984 and also the quantity produced in each month thereafter till the 30th September, 1984 to the specified authority.

(2)

sell and despatch the stocks as on the 31st May, 1984 declared in accordance with the provisions of sub-clause (1) together with those produced after the 31st May, 1984 and up to 30th September 1984, latest by the 31st October 1984 in the following manner namely.

(i)

not less than 20 per cent of the opening stocks as on the 31st May, 1984, during the month of June, 1984;

(ii)

not less than 20 per cent of the opening stocks as on the 1st July, 1984, during the month of July, 1984;

(iii)

not less than 20 per cent of opening stocks as on the 1st August, 1984 during the month of August, 1984 : and

(iv)

not less than 20 per cent of the opening stocks as on the 1st September, 1984 during the month of September, 1984;

(3)

furnish particulars of stocks, production, sales and despatches of Khandsari for each month latest by the 7th day of the following month to the specified authority :

Provided that the opening stocks of Khandsari as on the 31st May, 1984 shall be declared on or before the 3rd June 1984.

Explanation. - For the purpose of this Order, "specified authority" means the Collector of the District in which the producer's Khandsari unit is located or such other authority as the State Government may specify in this behalf.

2. This Order shall come into force at once.

Ministry of Food and Civil Supplies (Department of Food), Notification No. G.S.R. 775/(E)/Ess. Com/Sugar, dated May 19, 1986, published in the Gazette of India Extra, Part II, Section 3(i). dated 19th May, 1986, part 2.

In exercise of the powers conferred by Clause 5 of the Sugar (Control) Order, 1966, the Central Government hereby directs every producer of Khandsari (open pan sugar) shall-

(1)

declare his opening stocks of Khandsari as on the 31st May, 1986 and also the quantity produced in each month thereafter till the 30th September, 1986 to the specified authority.

(2)

sell and despatch the stocks as on the 31st May 1986 declared in accordance with the provisions of Paragraph (1) together with those produced after the 31st May, 1986 and up to 30th September, 1986, latest by the 31st October, 1986 in the following manner, namely :-

(i)

not less than 20 per cent of the opening stocks as on the 31st May, 1986, during the month of June, 1986;

(ii)

not less than 20 per cent of the opening stocks as on the 1st July, 1986 during the month of July, 1986;

(iii)

not less than 20 per cent of the opening stocks as on the 1st August, 1986, during the month of August 1986; and

(iv)

not less than 20 per cent of the opening stocks as on the 1st September, 1986, during the month of September, 1986;

(3)

furnish particulars of stocks production, sales and despatches of Khandsari for each month latest by the 7th day of the following month to the specified authority :

Provide that the opening stocks of Khandsari as on the 31st May, 1986 shall be declared on or before the 3rd June, 1986.

Explanation. - For the purpose of this Order, "specified authority" means the Collector of the District in which the producer's Khandsari unit is located or such other authority as the State Government may specify in this behalf.

2. This Order shall come into force at once.

Ministry of Food and Civil Supplies (Department of Food) Notification No. G.S.R. 662 (E)/Ess. Com./Sugar, dated July 17, 1987 published in the Gazette of India, Part II, Section 3(i), dated 17th July, 1987

In pursuance of Clauses 5 and 7 of the Sugar (Control) Order, 1966, the Central Government hereby makes the following amendment in the notification of the Government of India in the Ministry of Food and Civil Supplies (Department of Food) No. "G.S.R. 902(E)/Ess. Com./Sugar, dated the 24th June, 1986, namely :

In the said notification after the existing proviso, the following proviso shall be added, namely :-

"Provided further that nothing in this notification shall be applicable to industrial undertakings manufacturing vacuum pan sugar by using raw material other than sugarcane."

Ministry of Food & Civil Supplies (Department of Food). Notification No. G.S.R. 902(E)/Ess./Com./Sugar, dated June 24, 1988, published in the Gazette of India, Extra, Part II, Section 3(i), dated 24th June, 1986, part 2

Whereas the Central Government have been considering certain proposals for discontinuing the manufacture of vacuum pan sugar by the sugar producers by using Double Carbonation Double Sulphitation (DCDS) process on account of various disadvantages like higher cost involved and larger consumption of materials like lime stone and coal;

And whereas the Central Government have also been considering the question of changeover of the existing sugar factories manufacturing sugar with Double Carbonation Double Sulphitation process to Double Sulphitation process of manufacture;

And whereas, after careful consideration, the Central Government have decided to ban the manufacture of vacuum pan sugar by Double Carbonation Double Sulphitation process from the commencement of the Sugarcane Crushing Season 1989-90;

Now, therefore, in pursuance of Clauses 5 and 7 of the Sugar (Control) Order 1966, the Central Government hereby directs that with effect from the first day of October, 1989, no producer of sugar by vacuum pan process shall manufacture such sugar using the Double Carbonation Double Sulphitation process of manufacture :

Provided that an industrial undertaking already licensed and established under the Industries (Development and Regulation) Act, 1951, (65 of 1951) for the manufacture of vacuum pan sugar utilising the Double Carbonation Double Sulphitation process for such manufacture shall changeover to Double Sulphitation process by installation of necessary plant and machinery before the first day of October, 1989.

[Inserted by GSR 1915, dated 6-8-1971.]

Related AI tags, queries and research notes

Translation